

**IN THE UNDATED STATES DISTRICT COURT  
WESTERN DISTRICT OF KENTUCKY  
LOUISVILLE DIVISION**

**LARRY MAHANEY,  
PLAINTIFF**

**VS. CASE NUMBER 3:23-CV-00129-DJH**

**MCNEIL & COMPANY &  
ARCH INSURANCE COMPANY,  
DEFENDANTS**

**PLAINTIFF'S FRCP 15(c) & 19(a) FIRST AMENDED COMPLAINT**

Comes now the plaintiff, by counsel, who states as follows for his first amended complaint:

1. The plaintiff is now a resident of Clark County, Indiana, and has been since filing this matter in the Jefferson Circuit Court, prior to removal to this Court. The defendant, McNeil & Company is a New York insurance company licensed to conduct business in the Commonwealth of Kentucky. Arch Insurance Company is a foreign company licensed to conduct business in the Commonwealth of Kentucky, and affiliated with its codefendant.

2. On or about November 16, 2020, in Jefferson County, Kentucky, Victoria Fleck was operating her automobile on South Brook Street near East Chestnut Street and failed to operate her automobile in a safe and prudent manner. Victoria Fleck failed to yield to an emergency vehicle, the ambulance in which the plaintiff was a passenger working as an Emergency Medical Technician. Victoria Fleck failed to exercise ordinary care owed to other motorists on the roadways and caused the accident. Victoria Fleck owed a duty to the plaintiff, under KRS § 189.930, to yield right-of-way to the ambulance in which he was a passenger. The ambulance had both its siren and flashing lights operating before and at the time of the collision caused by

Victoria Fleck. Victoria Fleck's failure to exercise ordinary care and observe the mandate of KRS § 189.930, caused the collision and the plaintiff's damages. The plaintiff suffered physical and mental pain and suffering, and will continue to suffer physical and mental pain and suffering, lost wages, loss of power to earn money, disfigurement, and incurred medical expenses.

3. Victoria Fleck was insured, but had a minimum limit policy, making her an underinsured motorist. Her limits have been tendered among several claimants.

4. Defendants Arch Insurance Company and/or McNeil and Company issued a policy of insurance to the plaintiff's employer, New Chapel EMS (Utica Township Volunteer Firefighters Association) identified by policy number MEPK07094214, that includes underinsured motorist coverage. Pursuant to the policy and KRS § 304.39-320, the underinsured motorist statute, the plaintiff is entitled to recover from McNeil and Company and/or Arch Insurance Company, his damages caused by Victoria Fleck in excess of her insurance coverage up to the limits of the underinsured motorist policy.

5. The claim against Victoria Fleck is tentatively resolved, but the policy at issue in this matter has a contractual two-year statute of limitations, so that plaintiff is filed this action to preserve his rights to underinsured motorist coverage, though the plaintiff disputes the legality of the contractual limitation.

6. The plaintiff is entitled to recover all damages from Defendants Arch Insurance Company and/or McNeil and Company caused by Victoria Fleck, the underinsured motorist, as his damages exceed her minimum coverage and the fact several people are making claims against her.

7. Plaintiff names both companies as defendants as they may be alter egos of one another, related entities, and upon information and belief, Arch Insurance Company has held out McNeil and Company as its United States company. (Exhibit 1, Arch website).

8. Both defendants are unified and, in effect, responsible for the UIM benefits as they are on the UIM policy and McNeil & Company is one of its many United States locations.

WHEREFORE, the plaintiff demands the following relief:

- a. Judgment against the defendants on the underinsured motorist claim;
- b. An award of damages for his medical expenses;
- c. An award of damages for his past and future physical and mental pain and suffering;
- d. An award of damages for his lost earnings, and loss of future earnings;
- e. An award for disfigurement;
- f. His costs herein expended;
- g. Trial by jury; and,
- h. Any other relief to which he may be entitled.

Respectfully Submitted,

s/ J. Bart McMahon

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